

[2] STATUS HEARING RE: FINAL DISTRIBUTION

APPEARANCE REQUIRED. Pursuant to Probate Code section 12200, a personal representative is required to either petition for an order for final distribution of the estate or make a report of status of administration not later than one year after the date of issuance of letters. There is no petition for final distribution or status report on file. Appearance is required to show the condition of the estate, the reasons why the estate cannot be distributed and closed, and an estimate of time needed to close administration of the estate. (Prob. Code, § 12202, subd. (a).)

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In The Matter of Karen K. Carson Revocable Trust

26PR000040

[1] SECOND AMENDED PETITION FOR ORDERS

TENTATIVE RULING: The matter is CONTINUED to September 23, 2026, at 8:30 a.m. in Dept. A. Petitioner is ordered to provide code-compliant Notice of the continued hearing to all parties identified in the Second Amended Petition as being entitled thereto.

There remains no sufficient proof of service of the Amended Petition and no proof of service of the Notice of Hearing in the Court's file. (See Probate Code § 17203 [requiring 30 days' notice of hearing on trust matters].) The Court notes that Petitioner filed a Proof of Service of the Amended Petition on July 13, 2026 (7/13 POS). However, the 7/13 POS does not provide proof that the Amended Petition was served on all persons listed in the Amended Petition as entitled to notice. (Compare *id.* with Amended Petition at 11:2.) Specifically, there is no proof of service of the Amended Petition on Ian Lowney, Colin Lowney, Maria Ramirez, Teresa Gonzalez-Ramirez, or Suesan [sic] Kelly Hunt. (See Amended Petition at 11:2.) Moreover, there remains no proof of service of Notice of the instant hearing. The Court lacks jurisdiction to rule on a matter that has not been properly noticed for hearing on the date in question. (See *Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.)

[2] RESPONDENT SUSANNAH G. CARSON'S MOTION FOR SANCTIONS

TENTATIVE RULING: The matter is CONTINUED to September 23, 2026, at 8:30 a.m. in Dept. A.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. NATURE OF MOTION

Respondent Susannah G. Carson moves, pursuant to California Civil Code of Procedure section 128.7 (Section 128.7), for an order imposing monetary sanctions, in the form of reasonable attorney's fees and costs, against Petitioner John P. Lowney, III and his attorney Kevin R. Snyder, jointly and severally, in the amount of \$15,896.50. Ms. Carson so moves on grounds that Petitioner filed the Second Amended Petition for an improper purpose.

B. PROCEDURAL BACKGROUND

Mr. Lowney commenced the instant action by filing, on February 19, 2026, a petition for orders: (1) invalidating a trust amendment based on lack of capacity, undue influence, and fraud; (2) removing Susannah G. Carson as Trustee; (3) cancelling the subject instrument; and (4) determining title to trust assets.

It appears uncontroverted that the subject Trust was an estate planning vehicle for decedent Karen K. Carson (Decedent), and that Decedent was survived by three children: Mr. Lowney, Respondent Susannah Carson, and Katherine K. Sukla. Pursuant to the allegations of the Petition, Mr. Lowry lived with, and served as Decedent's primary caregiver from June 29, 2019 through December 2024. (See *id.* at ¶ 4.) At that time, Susannah Carson removed Mr. Lowney from the residence and took over caretaking duties. (See *id.* at ¶ 5.) In January 2025, Decedent executed a trust restatement that disinherited Mr. Lowney and Ms. Sukla. (See *id.* at ¶ 6.) The gravamen of the Petition was that the restatement was the product of undue influence on Decedent by Susannah Carson.

On March 23, 2026, Susannah G. Carson demurred to the Petition arguing that each cause of action was time barred, pursuant to Probate Code section 16061.8, based on the assertion that "co-counsel of record for Respondent, Lori Hunt, served all heirs, including but not limited to, Petitioner John P. Lowney a valid, timely and complete 'Notification by Trustee' on April 5, 2025, disclosing a true and complete copy of the Trust." (Support Memorandum filed in support of Demurrer at 7:7-10.)

On April 14, 2026, Petitioner filed an opposition to the demurrer. However, on April 15, 2026, Petitioner filed an Amended Petition.

By Minute Order of May 6, 2026 (5/6 M.O.), the Court directed the Clerk to strike the Amended Petition on grounds that it was filed without leave of Court.

That Minute Order also addressed the pending demurrer. It provides, in part, as follows.

The matter came on originally for hearing on April 28, 2026. Attorneys David Balter and Nicholas Conti appeared on behalf of Respondent, and attorney Kevin Snyder appeared on behalf of Petitioner. At the hearing, Petitioner and

Respondent stipulated to the fact that, on April 5, 2025, Attorney Lori Hunt served, by mail, on behalf of Respondent, the letter attached as Exhibit 1 to the Request for Judicial Notice filed in support of the instant demurrer, including the Notification by Trustee Pursuant to Probate Code Section 16061.7 attached thereto, and that, on April 21, 2025, Attorney Lori Hunt served, by mail, on behalf of Respondent, the letter attached as Exhibit 2 to the Request for Judicial Notice filed in support of the instant demurrer, including the Notification by Trustee Pursuant to Probate Code Section 16061.7 attached thereto. (See Minute order of April 28, 2026.)

The Court finds that the stipulation constitutes a judicial admission of the fact of the service of the Notices by Trustee Pursuant to Probate Code Section 16061.7. (See *Valerio v. Andrew Youngquist Construction* (2002) 103 Cal.App.4th 1264, 1271 [held: a judicial admission is “a waiver of proof of a fact by conceding its truth, and it has the effect of removing the matter from the issues”]; see also *Barsegian v. Kessler & Kessler* (2013) 215 Cal.App.4th 446, 451 (*Barsegian*), [‘Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission’].) ‘Facts established by pleadings as judicial admissions “are conclusive concessions of the truth of those matters, are effectively removed as issues from the litigation, and may not be contradicted, by the party whose pleadings are used against him or her.” (Ibid.)’

Based on that judicial admission, the Court sustained the demurrer. “Reviewing the substance of the Petition and its practical effect, the Court concludes that it is an action challenging the validity of a trust, and is therefore subject to the limitations of Probate Code section 16061.8. The Petition was filed February 19, 2026, more than 120 days from and after April 5, 2025, and is therefore barred pursuant to that statute.” (5/6 M.O.) However, the Court granted Mr. Lowrey 10 calendar days’ leave, from Notice of Entry of Order, to amend the Petition, “to state claims relating to undue influence, fraud, and breach of fiduciary duties, that do not, in substance and/or practical effect, constitute an attack on the validity of the Trust Amendment.” (*Ibid.*) Susannah Carson served and filed a Notice of Entry of Order on May 6, 2026.

On May 19, 2026, Mr. Lowrey filed a Second Amended Petition (SAP). Susannah Carson “now files this Motion, pursuant to California Code of Civil Procedure Section 128.7, on the grounds Petitioner presented his SAP to this Court for an improper and frivolous purpose.” (Support Memo at 4:17-19.)

C. ANALYSIS

Code of Civil Procedure section 128.7, subdivision (b), provides, in part, that “[b]y presenting to the court, . . . , a pleading, . . . an attorney or unrepresented party is certifying that to the best of the person’s knowledge, information, and belief, formed after an inquiry reasonable under the circumstances [that] . . . [i]t is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.” If the Court finds that Code of Civil Procedure section 128.7, subd. (b) has been violated, it may

award sanctions so long as the sanctions are “limited to what is sufficient to deter repetition of this conduct or comparable conduct by others similarly situated.” (Code of Civil Procedure section 128.7, subd. (d).)

The Court finds that Susannah Carson has complied with the safe-harbor provision of Probate Code section 128.7, subdivision (c)(1). (See Declaration of David Balter at ¶¶ 10-11.)

Ms. Carson argues that the SAP is frivolous because it was filed “after the Court-ordered 10-day period had expired, [and] because it still seeks to effectively invalidate the Trust based on lack of capacity and undue influence.” (See Support Memo at 8:7-9.) She asserts that “all of Petitioner’s causes of action in the SAP attack the validity of the Trust and are thus time-barred under Probate Code section 16061.8 . . .” (*Id.* at 8:13-16.) On these grounds, “Respondent seeks \$15,896.50 in sanctions to compensate for the reasonable attorney’s fees and costs incurred in defending against Petitioner’s frivolous and improper SAP. [Citation.]. This amount reflects the fees incurred for: (1) the demurrer to the SAP; (2) the meet and confer efforts related to the SAP; and (3) this Motion for Sanctions.” (*Id.* at 11:8-11.)

There is, however, no demurrer to the SAP on file. On Reply Ms. Carson notes that she submitted, electronically, a demurrer to the SAP on June 16, 2026. The Court takes Notice of a Document Return Notice filed on that date in the matter. It states that “[t]he court cannot schedule a demurrer hearing for the following day. The hearing must be set at least two weeks out from the date of filing.”

Ms. Carson argues that the Clerk improperly rejected that demurrer based on the holding in *Goebner v. Superior Court* (2025) 110 Cal.App.5th 1105, 1113 (*Goebner*). The Court agrees with Ms. Carson. However, there is no indication that Ms. Carson ever brought this to the Court’s attention – either by communicating directly with the Court Clerk, or by requesting an order compelling the Clerk to accept the filing. There is, similarly, no indication in the Court’s file that Ms. Carson attempted to refile the demurrer. Thus, even accepting that the Court Clerk *should* have accepted the demurrer for filing on June 16, 2026, the fact remains that no demurrer to the SAC has been filed or calendared in the action.

The import of this is two-fold. First, as no demurrer has been filed, the Court finds, at present, no grounds for awarding attorneys’ fees incurred in relation thereto. More fundamentally, a demurrer is the appropriate vehicle for attacking a pleading on grounds that its claims are time barred.¹ As no demurrer has been filed, the question of whether the claims asserted in the SAP are, in fact, time barred, is not properly before the Court. In this context, Ms. Carson’s request for an award of monetary sanctions is premature.

However, the Court is sympathetic to Ms. Carson’s frustration with Mr. Lowrey’s delays in properly serving the SAP and noticing its hearing. As provided in the concurrent ruling on the SAP, the Court is, *once again*, forced to continue that hearing based on these failures.

¹ To the extent that Respondent asks the Court to rule that the claims in the SAP are time barred through the instant Motion, the Court declines to do so. Any finding, here, that one or more claims are barred would do nothing to advance the litigation as the deficient pleading would remain fully operative.

Moreover, the Court acknowledges that Ms. Carson’s demurrer should have been accepted for filing when submitted in mid-June.

Based on the foregoing, the Court elects to defer consideration of the merits of the instant Motion until after issues regarding the adequacy of the SAP are resolved. As the hearing on the SAP is now continued to September 23, 2026, the time for Ms. Carson to file a demurrer has not yet run. (See *Goebner, supra*, 110 Cal.App.5th at 1113.) The Court notes that nothing in the *Goebner* holding, and no other authority known to the Court, prohibits Ms. Carson from setting hearing on the demurrer in advance of the hearing on the SAP (so long as the notice and filing requirements of the Code of Civil Procedure are complied with). The Court further notes that, while *Goebner* and the Probate Code *permit* the demurrer to be filed before or at the hearing on the SAP, the realities of the Court’s resource limitations would very likely require a continuance of both hearings if the filing occurs less than the fifteen Court days prior thereto.

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In The Matter of Deana A Pena

26PR000116

PETITION FOR LETTERS OF ADMINISTRATION

TENTATIVE RULING: There is no proof of publication on file.

If a proper proof of publication is filed prior to the hearing, the petition will be CONTINUED to September 4, 2026, at 8:30 a.m. in Dept. A to allow Petitioner to remedy the deficiencies listed below. Petitioner may wish to contact a probate attorney or the Court’s self-help center regarding the below deficiencies.

- (1) There is no completed Proof of Service on all heirs on file. (Prob Code, §§ 8100, 8110). The Court notes that the only other heir listed in the Petition is Decedent’s Husband, whose location is reported “unknown.” To the extent Petitioner is unable to complete service of the Petition on Decedent’s Husband, Petitioner is directed to submit a declaration demonstrating due diligence in attempting to locate him, and a Proposed Order Dispensing with Notice (Form GC-021).
- (2) There is no Duties and Liabilities form (DE-147) on file.
- (3) The Petition requests both Letters of Administration and Letters of Special Administration. (See Pet., Caption and § 2(b)(3)-(4).) Because the Petition does not appear to request limited authority pending issuance of permanent letters, the Court construes the Petition only as one for Letters of Administration. To the extent Petitioner disagrees with this interpretation, he shall file an Amended Petition.
- (4) The Petition states that Decedent died intestate (see Pet., § 3(f)(1)) and also includes allegations inconsistent therewith (see *id.*, §§ 2(b)(1), 3(g)(1)). Because the Petition is one for Letters of Administration (consistent with an intestate decedent), the Court will accept the intestacy allegations as accurate and will construe the inconsistent allegations as inadvertent errors. To the